

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
SAMUEL HERNANDEZ,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. JOHN BACKER, SHIELD NO:
4598, TAX I.D. 956405 OF THE 101ST PRECINCT AND
P.O. ROSARIO CASTELLANO, SHIELD NO: 92, TAX
I.D. NO: 958378 OF THE 101ST PRECINCT,Defendant(s).
-----X

Index No.:

Date Purchased:

SUMMONSPlaintiff designates Queens
County as the place of trial.The basis of venue is:
Place of OccurrencePlaintiff resides at:
31 West Tremont Avenue,
Apt# 3L
Bronx, NY 10453
County of Bronx**To the above named Defendant:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York

August 26, 2019
MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
SAMUEL HERNANDEZ
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9225

TO: THE CITY OF NEW YORK

100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

P.O. JOHN BACKER, SHIELD NO: 4598,
TAX I.D. 956405 OF THE 101ST PRECINCT
16-12 Mott Avenue
Far Rockaway, NY 11691

P.O. ROSARIO CASTELLANO, SHIELD NO: 92,
TAX I.D. NO: 958378 OF THE 101ST PRECINCT
16-12 Mott Avenue
Far Rockaway, NY 11691

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
SAMUEL HERNANDEZ,

Plaintiff(s),

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VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. JOHN BACKER, SHIELD NO:
4598, TAX I.D. 956405 OF THE 101ST PRECINCT AND
P.O. ROSARIO CASTELLANO, SHIELD NO: 92, TAX
I.D. NO: 958378 OF THE 101ST PRECINCT,Defendant(s).
-----X

Plaintiff, by her attorneys, GETZ & BRAVERMAN, P.C., complaining of the Defendants,
respectfully alleges, upon information and belief:

1. At the time of the commencement of this action, Plaintiff was a resident of the County of Bronx, State of New York.
2. This action falls within one or more of the exemptions set forth in CPLR §1602.
3. The cause of action alleged herein arose in the County of Queens, State of New York.
4. Upon information and belief, that that all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK** was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
5. Upon information and belief, that at all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, its agents, servants and employees operated, maintained

and controlled the **NEW YORK CITY POLICE DEPARTMENT**, including all the police officers thereof.

6. Upon information and belief, at all times mentioned, Defendants, **P.O. JOHN BACKER, SHIELD NO: 4598, TAX I.D. 956405 OF THE 101ST PRECINCT AND P.O. ROSARIO CASTELLANO, SHIELD NO: 92, TAX I.D. NO: 958378 OF THE 101ST PRECINCT**, were and are police officers of the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **NEW YORK CITY POLICE DEPARTMENT**.

7. Upon information and belief, that at all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, its agents, servants and employees operated, maintained and controlled **NEW YORK CITY POLICE DEPARTMENT**, including all police officers thereof.

8. That prior hereto on August 2, 2018, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on **THE CITY OF NEW YORK** and that thereafter said **CITY OF NEW YORK** refused or neglected or more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

9. A 50-H hearing was held on June 24, 2019.

10. That this action is being commenced within one year and ninety days after accrual

of this cause of action, or within the time allowed by law.

AS AND FOR THE FIRST CAUSE OF ACTION

11. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "10", with the same force and effect as if more fully and completely set forth at length herein.

12. That on August 2, 2018, Plaintiff **SAMUEL HERNANDEZ** was in front of 31-10 Dwight Avenue at 44 Lambert Avenue, County of Queens, City and State of New York, when plaintiff was caused to sustain injuries when she was assaulted and battered by , **P.O. JOHN BACKER, SHIELD NO: 4598, TAX I.D. 956405 OF THE 101ST PRECINCT AND P.O. ROSARIO CASTELLANO, SHIELD NO: 92, TAX I.D. NO: 958378 OF THE 101ST PRECINCT.**

13. That said occurrence and the result thereof were due solely and wholly by Reason of the negligence, carelessness and recklessness of the Defendants, its agents, servants, employees, licensees, designees and/or representatives in ownership, maintenance, management, supervision, charge and control of the aforesaid entity and personnel.

14. That there was no culpable conduct on the part of the claimant contributing thereto.

AS AND FOR A SECOND CAUSE OF ACTION

15. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "12", with the same force and effect as if more fully and completely set forth at length herein.

16. That on or about August 2, 2018 at arum 3:22 a.m., while the Plaintiff was lawfully at the above mentioned location, when **P.O. JOHN BACKER, SHIELD NO: 4598, TAX I.D. 956405 OF THE 101ST PRECINCT** AND **P.O. ROSARIO CASTELLANO, SHIELD NO: 92, TAX I.D. NO: 958378 OF THE 101ST PRECINCT**. Members of the **NEW YORK CITY POLICE DPEARTMENT** without just cause or provocation assaulted and battered Plaintiff **SAMUEL HERNANDEZ** causing Plaintiff to sustained severe, serious and permanent injuries.

17. That the defendants, their agents, servants and employees, acting as agents and on behalf of defendants and within the scope of their employment, intentionally, willfully and maliciously assaulted and injured Plaintiff, **SAMUEL HERNANDEZ**, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally committed a violent and/or menacing act which threatened such contact in the plaintiff, and defendants, in a hostile and/or offensive manner touched and accosted the plaintiff without her consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused several severe injuries to his left hand, and left fingers among other injuries requiring Plaintiff, **SAMUEL HERNANDEZ** to be admitted in the St. Johns Episcopal Hospital from August 2, 2019 to August 3, 2019.

18. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, acting within the scope of their authority and without probable or reasonable cause, the Plaintiff suffered great bodily injury in and about her anatomy and was rendered sick, sore, lame and disabled, and among other things, she suffered conscious pain and suffering and otherwise damaged.

19. That by reason of the aforesaid, the Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower Courts which otherwise would have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

20. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "17" , with the same force and effect as if more fully set forth herein.

21. That the defendant, **THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT**, was careless and reckless in hiring and retaining of its employee, the above named individuals: in that the said defendant's employees, the above named individual; in that the said defendants' employees lacked the experience, deportment and ability to be employed by the defendant; in that the defendant failed to exercise due care and caution on its hiring practices, and in particularly, the hiring of the defendant employees who lacked the mental capacity and the ability to function as employees of the aforementioned defendants.

22. That the aforesaid occurrence, to wit: the assault and batter and the resulting injuries to the mind and the body therefrom were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.

23. That by reason of the aforesaid, the plaintiff was injured in mind and body and Still suffers and, upon information and belief, will continue to suffer great physical and mental pain , and he was rendered sick, sore, lame and disabled and so remains, and

he has expended and incurred diverse and substantial sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation imposed upon him by the actions of the defendants, their agents, servants, employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

AS AND FOR A FOURTH CAUSE OF ACTION

24. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "21", with the same force and effect as if more fully set forth herein.

25. That the defendant, their agents, servants and employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in particular the members of the **NEW YORK COUNTY POLICE DEPARTMENT**, and impart upon them the knowledge of the proper circumstances under which an arrest and search may be made; to control their tempers and exercise the proper deportment, behavior and conduct as representatives of their employers; and in that the defendants, their agents, servants and employees were otherwise reckless, careless and negligent.

26. That the aforesaid occurrence to wit: the assault and battery and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.

27. That the aforesaid occurrence to wit: the assault and battery and the resulting

injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of **P.O. JOHN BACKER, SHIELD NO: 4598, TAX I.D. 956405 OF THE 101ST PRECINCT** AND **P.O. ROSARIO CASTELLANO, SHIELD NO: 92, TAX I.D. NO: 958378 OF THE 101ST PRECINCT**, defendant, its agents, servants and employees without any negligence on the part of the plaintiff.

28. That the aforesaid occurrence to wit: the assault and battery and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants **THE CITY OF NEW YORK AND THE NEW YOR**, its agents, servants and employees without any negligence on the part of the plaintiff.

29. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and, upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick, sore, lame and disabled and so remains, and he was incapacitated from his usual occupation by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

30. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FORTHE FIFTH CAUSE OF ACTION

31. Plaintiff repeats, reiterates and realleges each and very allegation contained in paragraphs marked "1" through "30", with the same force and effect as if more fully

set forth herein.

32. That the defendants, their agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their police duties as a reasonably prudent and careful police officer would have used under similar circumstances in that they carelessly and recklessly without provocation and with great force and violence; negligently, carelessly and recklessly used the threat of physical force and actually used physical force upon the plaintiff thereat; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.

33. That the aforesaid occurrence, to wit: the assault and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.

34. Upon threatening the Plaintiff, **P.O. JOHN BACKER, SHIELD NO: 4598, TAX I.D. 956405 OF THE 101ST PRECINCT** AND **P.O. ROSARIO CASTELLANO, SHIELD NO: 92, TAX I.D. NO: 958378 OF THE 101ST PRECINCT**, while acting in concert, intentionally made plaintiff fear for his physical well-being and safety and placed his in apprehension of immediate harmful and/or offensive touching.

35. As a direct and proximate result thereof, plaintiff claims damages for the injuries set forth above.

36. That by reason of the aforesaid, the plaintiff was injured in mind and body, still

suffers and, upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick sore, lame and disabled and so remains, and she was incapacitated from his usual occupation by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and, upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

**AS AND FOR THE SIXTH CAUSE OF ACTION
VIOLATION OF CIVIL RIGHTS**

37. Defendants and their employees violated the plaintiff's civil rights, pursuant to u.s.c.a. §1981, 1983, 1985, in that claimant **SAMUEL HERNANDEZ** was deprived of his rights, privileges and immunities secured by the Constitution and laws of the United States of America by one who, under color of a statute or regulation of a state, caused claimant to be so deprived and other and further violations of claimant's rights and privileges secured to claimant under the Constitutions of the United State of America and State of New York.

38. Defendant **P.O. JOHN BACKER, SHIELD NO: 4598, TAX I.D. 956405 OF THE 101ST PRECINCT** assaulted, battered and used excessive force against the Plaintiff.

39. Defendant **P.O. ROSARIO CASTELLANO, SHIELD NO: 92, TAX I.D. 953878 OF THE 101ST PRECINCT** assaulted, battered and used excessive force against the Plaintiff.

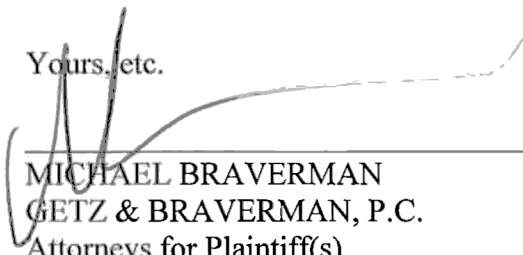
40. That by reason of the aforesaid, the plaintiff has been damaged in an amount Which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

WHEREFORE, Plaintiffs demand judgment against the Defendants herein on all causes of action, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Bronx, New York

August 26, 2019

Yours, etc.


MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
SAMUEL HERNENDEZ
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9225

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK

SS:

COUNTY OF BRONX

Samuel Hernandez, being duly sworn, says:

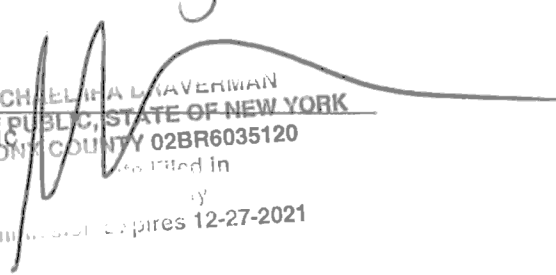
I am a Plaintiff in the action herein: I have read the annexed Summons & Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: Bronx, New York
August 26, 2019



Sworn to before me this

26th day of August, 2019


MICHAEL L. LAVERMAN
NOTARY PUBLIC, STATE OF NEW YORK
BRONX COUNTY 02BR6035120
Commission Expires 12-27-2021

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ROSARIO CASTELLANO, SHIELD NO: 92, TAX I.D. NO: 958378 OF THE 101ST
PRECINCT,

Defendant(s).

SUMMONS & VERIFIED COMPLAINT

GETZ & BRAVERMAN, P.C.

Attorney for Plaintiff

SAMUEL HERNANDEZ

172 East 161st Street

Bronx, NY 10451

(718) 993-3000

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

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